

Lumbini Buddhist University Act, 2006

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Lumbini Buddhist University Act, 2063 (2007)

Certification and Publication Date

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Amending Acts

1. This Act came into force from Jestha 15, 2064. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.10.07
2. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13
3. Act Made to Amend Some Nepal Acts Relating to Education, 2077 (2020) 2077.03.11
4. Some Nepal Acts Amendment Act, 2082 (2025) 2082.04.14

Act No. 16 of the year 2063 (2007)

An Act Made to Make Provision Relating to Lumbini Buddhist University

Preamble: Whereas, it is desirable to establish and make provision for Lumbini Buddhist University to operate higher level teaching institutions for the study, teaching, and research of Buddhist philosophy, literature, education, and culture, as well as other subjects, by accepting and following the teachings of Lord Gautam Buddha as a guiding message for world peace, promoting peace, brotherhood, friendship, and goodwill, maintaining quality in education, and amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. omitted by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Now, therefore, the House of Representatives has enacted this Act in the first year of the issuance of the Proclamation of the House of Representatives, 2063 (2006). Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Lumbini Buddhist University Act, 2063 (2007)."
- (2) This Act shall be deemed to have commenced from Baisakh 23, 2063 (May 7, 2006).
2. Definition: Unless the subject or context otherwise requires, in this Act,-
 - (a) "University" means the Lumbini Buddhist University established pursuant to Section 3.
 - (b) "Senate" means the University Senate pursuant to Section 7.
 - (c) "Academic Council" means the Academic Council pursuant to Section 10.
 - (d) "Executive Council" means the Executive Council pursuant to Section 12.
 - (e) "Faculty" means the Faculty pursuant to Section 14.
 - (f) "Faculty Board" means the Faculty Board pursuant to Section 15.
 - (g) "Campus" means a constituent campus of the University, and the term shall also include campuses

affiliated with the University.

(h) "Dean" means the head of a Faculty.

(i) "Teacher" means a Professor, Associate Professor, Assistant Professor, or Lecturer imparting education or conducting or guiding research at the University, and the term shall also include instructors of various levels of the University and any other person designated as a Teacher by the rules made under this Act.

(j) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.

Chapter-2

Provisions Relating to Establishment of the University

3. Establishment of the University: (1) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077.

Lumbini Buddhist University is established to operate higher level teaching institutions for the study, teaching, and research of Buddhist philosophy, literature, education, and culture, as well as other subjects. (2) The central office of the University shall be located in the Lumbini area of Rupandehi District. 4. University to be an Autonomous Corporate Body: (1) The University shall be an autonomous corporate body with perpetual succession. (2) The University shall have its own separate seal for all its acts and proceedings. (3) The University may, like an individual, acquire, possess, sell, or otherwise dispose of movable and immovable property. (4) The University may, like an individual, sue and be sued in the same name.

Chapter-3 Provisions Relating to the Organizational Structure and Office-Bearers of the University 5. Organization of the University: The organization of the University shall be as follows, and their collective form shall constitute the structure of the University:- (a) Senate, (b) Academic Council, (c) Executive Council, (d) Faculty, (e) Faculty Board, (f) Campus, and (g) Other bodies as prescribed. 6. Office-Bearers of the University: The University shall have the following office-bearers:- (a) Chancellor, (b) Pro-Chancellor, (c) Vice-Chancellor, (d) Registrar, (e) Dean, (f) Campus Chief, (g) Other office-bearers as prescribed.

Chapter-4 Provisions Relating to the University Senate 7. Formation of the Senate: (1) There shall be a Senate as the supreme body of the University. (2) The formation of the Senate shall be as follows:- (a) Chancellor - Chairperson (b) Pro-Chancellor - Vice-Chairperson (c) Vice-Chancellor - Member (d) Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (e) Member, National Planning Commission (looking after education) - Member (f) Two Vice-Chancellors from among the Vice-Chancellors of other universities - Member (g) Chairperson, University Grants Commission - Member (h) Secretary, Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Ministry of Education, Science and Technology - Member (i) Secretary, Ministry of Finance - Member (j) Secretary, Ministry of Culture, Tourism and Civil Aviation - Member (k) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Chief Secretary of the concerned Provincial Government - Member (l) Vice-Chairperson, Lumbini Development Fund - Member (m) Dean - Member (n) Two from among the Campus Chiefs - Member (o) One from among the Teachers - Member (p) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077.

Representative of the University Teachers' Association - Member

(q) Omitted by the Some Nepal Acts Amendment Act, 2072.

(r) Fourteen from among the renowned scholars of Buddhist philosophy, literature, education, and culture, amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. including at least one woman from each province - Member

(s) Seven from among the representatives of nationally and internationally recognized institutions related to Buddhist philosophy, including at least three women - Member

(t) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Two from among the donors on an inclusive basis - Member

(u) One from among education enthusiasts and social workers - Member

(v) Registrar - Member-Secretary

(3) Members other than the ex-officio members of the Senate shall be nominated by the Chancellor on the recommendation of the Executive Council.

(4) The term of office of nominated members of the Senate shall be three years.

(5) If the office of a nominated member of the Senate falls vacant for any reason, another person shall be nominated for the remaining period after fulfilling the procedure pursuant to Sub-section (3). 8. Meeting of the Senate: (1) The meeting of the Senate shall be held at least twice a year.

(2) The meeting of the Senate shall be held at the date, time, and place fixed by the Chairperson of the Senate.

(3) Notice of the meeting along with the agenda of subjects to be discussed shall be given to all members by the Member-Secretary of the Senate at least fifteen days before the meeting.

(4) If more than fifty percent of the members for the time being holding office are present in the Senate, the meeting of the Senate shall be deemed to have constituted a quorum.

(5) The meeting of the Senate shall be presided over by the Chairperson of the Senate, and in his/her absence, by the Vice-Chairperson of the Senate. In the absence of both the Chairperson and the Vice-Chairperson of the Senate, the Vice-Chancellor shall preside over the meeting of the Senate.

(6) The decision of the majority in the meeting of the Senate shall prevail, and in case of a tie, the person presiding over the meeting shall have a casting vote.

(7) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. The person presiding over the meeting of the Senate shall certify the decision of the meeting.

(8) Other procedures relating to the meeting of the Senate shall be as determined by the Senate itself. 9.

Functions, Duties, and Powers of the Senate: The functions, duties, and powers of the Senate shall be as follows:- (a) To formulate policies of the University, (b) To guide the University, (c) To operate and manage the academic programs of the University, (d) To do or cause to do necessary work relating to the establishment and affiliation of campuses, (e) To determine and confer various degrees to be awarded by the University, (f) To issue directives and guidance to the constituent campuses of the University and campuses affiliated with the University, (g) To determine educational and administrative policies of various bodies under the University, (h) To form various committees, sub-committees, or task forces as required by the University, (i) To approve the annual budget and programs of the University, (j) To discuss the annual reports of bodies under the University and evaluate programs, (k) To discuss and approve the audit report of the University, (l) To pass rules relating to the University, (m) To determine the service conditions of the office-bearers, teachers, and employees of the University, (n) To protect or cause to protect the property of the University, (o) To perform other functions as prescribed. Chapter-5 Provisions Relating to the Academic Council 10. Formation of the Academic Council: (1) There shall be an Academic Council to function as the academic and scholarly body of the University. (2) The formation of the Academic Council shall be as follows:- (a) Vice-Chancellor ? Chairperson (b) Registrar ? Member (c) Five from among the Chairpersons of various

subject committees of the University ? Member (d) One from among the Teachers ? Member (e) Two persons, including one woman, from among those who have made significant contributions in the fields of Buddhist philosophy, literature, education, and culture ? Member (f) Dean ? Member-Secretary (3) Members other than the ex-officio members of the Academic Council shall be nominated by the Chancellor on the recommendation of the Executive Council. (4) The term of office of nominated members of the Academic Council shall be three years. (5) Notwithstanding anything contained in Sub-section (4), if the work of any nominated member of the Academic Council is not found satisfactory, the Chancellor may remove him/her at any time on the recommendation of the Executive Council.

Provided that he/she shall not be deprived of an opportunity to submit a defense before such removal.

(6) If the office of a nominated member of the Academic Council falls vacant for any reason, another person shall be nominated for the remaining period after fulfilling the procedure pursuant to Sub-section (3).

(7) The procedure relating to the meeting of the Academic Council shall be as prescribed. 11. Functions, Duties, and Powers of the Academic Council: The functions, duties, and powers of the Academic Council shall be as follows:-

- (a) To determine and approve the curriculum of the University,
 - (b) To prescribe the types of examinations to be conducted under the University,
 - (c) To determine the eligibility criteria and number of student admissions,
 - (d) To formulate research policies and grant approval to research programs,
 - (e) To evaluate the academic programs of students,
 - (f) To determine the standards of teaching and research,
 - (g) To make provision for honorary degrees,
 - (h) To perform other functions as prescribed. Chapter-6
- Provisions Relating to the Executive Council

12. Formation of the Executive Council: (1) There shall be an Executive Council to function as the executive body of the University.

(2) The formation of the Executive Council shall be as follows:-

- (a) Vice-Chancellor ? Chairperson
- (b) Dean ? Member
- (c) One from among the Campus Chiefs who are members of the Senate ? Member
- (d) One from among the renowned local scholars of Buddhist philosophy, literature, education, and culture ? Member
- (e) Two Teachers, including one woman ? Member
- (f) Registrar ? Member-Secretary

(3) Members pursuant to Clauses (b), (c), (d), and (e) of Sub-section (2) shall be nominated by the Chancellor on the recommendation of the Vice-Chancellor.

(4) The term of office of nominated members of the Executive Council shall be three years.

(5) Notwithstanding anything contained in Sub-section (4), if the work of any nominated member of the Executive Council is not found satisfactory, the Chancellor may remove him/her at any time on the recommendation of the Vice-Chancellor. Provided that he/she shall not be deprived of an opportunity to submit a defense before such removal.

(6) If the office of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period after fulfilling the procedure pursuant to Sub-section (3).

(7) The procedure relating to the meeting of the Executive Council shall be as prescribed. Provided that until rules required to be made under this Act are made, the procedure relating to the meeting of the Executive Council shall be as determined by the Council itself. 13.

Functions, Duties, and Powers of the Executive Council: The functions, duties, and powers of the Executive Council shall be as follows:- (a) To implement or cause to implement the decisions and directives of the Senate, (b) To prepare the annual program, budget, progress report, audit report, and other proposals of the University and submit them to the Senate for approval, (c) To operate, manage, and control the Fund and movable and immovable property of the University, (d) Subject to the policy directives of the Senate, to sell and give on contract or lease the movable and immovable property of the University, (e) To coordinate, oversee, and inspect the programs conducted by the University and submit a report thereof to the Senate, (f) To prepare a draft of rules relating to the University and submit them to the Senate for approval, (g) To appoint and promote teachers and employees required for the University as prescribed, (h) To accept donations, endowments, financial and other assistance received by the University, (i) To determine student fees, and (j) To perform other functions as prescribed. Chapter-7 Provisions Relating to Faculty, Campus, and Other Bodies 14. Faculty: (1) There shall be a Faculty as prescribed for the prescribed subjects of higher education to be conducted by the University. (2) The functions, duties, and powers of a Faculty shall be as prescribed. 15. Formation of Faculty Board: (1) In a Faculty, a Faculty Board as prescribed shall be formed for conducting educational and academic programs. (2) There shall be subject committees as prescribed under the Faculty Board. (3) The functions, duties, and powers of the Faculty Board and the subject committees thereunder, and the procedure relating to meetings, shall be as prescribed. 16. Establishment and Operation of Campuses: (1) The University may establish and operate campuses for the purpose of providing higher education. (2) The provisions relating to campuses established and operated by the University pursuant to Sub-section (1) shall be as prescribed. 17. Affiliation with the University: (1) If any domestic or foreign campus desires to operate by obtaining affiliation from the University, the University may grant affiliation to such campus. (2) A campus obtaining affiliation pursuant to Sub-section (1) shall pay the affiliation fee fixed by the University to the University every year. (3) A campus obtaining affiliation pursuant to Sub-section (1) shall comply with the conditions prescribed by the University. 18.

Other Bodies May Exist: (1) In the University, in addition to those mentioned in this Act, other bodies as prescribed may exist. (2) Provisions relating to the establishment and operation of a body pursuant to Sub-section (1) shall be as prescribed. Chapter-8 Provisions Relating to Office-Bearers of the University 19. Chancellor: (1) The Prime Minister shall be the Chancellor of the University. (2) The Chancellor shall be the head of the University and the Chairperson of the Senate. (3) The Chancellor may inspect any matter relating to the University and issue necessary directives to the University. 20. Pro-Chancellor: (1) Minister for Education, Science and Technology shall be the Pro-Chancellor of the University. (2) The Pro-Chancellor may, as required, inspect the University and issue directives to the University. 21. Vice-Chancellor: (1) The Vice-Chancellor shall be the chief office-bearer of the University working full-time. (2) A committee comprising two members of the Senate under the chairpersonship of the Pro-Chancellor shall be formed by the Chancellor to submit a recommendation for appointment to the post of Vice-Chancellor, and the Vice-Chancellor shall be appointed by the Chancellor on the recommendation of that committee. (3) The term of office of the Vice-Chancellor shall be four years. (4) The remuneration, facilities, and other service conditions of the Vice-Chancellor shall be as prescribed. 22. Functions, Duties, and Powers of the

Vice-Chancellor: (1) The functions, duties, and powers of the Vice-Chancellor shall be as follows:- (a) To oversee and control all activities of the University, (b) To implement or cause to implement the decisions and directives of the Senate, (c) To submit proposals on all subjects to be presented to the Senate, (d) To formulate or cause to formulate short-term or long-term programs for the development of the University, (e) To represent or cause to represent the University in various bodies, (f) To make arrangements for resources required by the University. (2) Except for the functions mentioned in this Act or the rules made under this Act as to be performed by any body or office-bearer, other functions shall be performed by the Vice-Chancellor. If the Vice-Chancellor performs any such function, he/she shall immediately inform the Chancellor thereof, and get it ratified at the next meeting of the Senate held immediately after that. (3) Other functions, duties, and powers of the Vice-Chancellor shall be as prescribed. 23.

Registrar: (1) The Registrar shall be an office-bearer working full-time in the University. (2) The Registrar shall be appointed by the Chancellor on the recommendation of the Vice-Chancellor. (3) The academic, financial, and employee administration of the University shall be under the general supervision of the Registrar. (4) The term of office of the Registrar shall be four years. (5) Other functions, duties, and powers, remuneration, facilities, and service conditions of the Registrar shall be as prescribed. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. (6) The Registrar shall keep records of the decisions or orders of the Senate. A copy of such decision or order shall be sent to the Chancellor. 24. Dean: (1) The Dean shall be the chief office-bearer working full-time in the Faculty. (2) The Dean shall be appointed by the Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. Executive Council. (3) The term of office of the Dean shall be four years. (4) The functions, duties, and powers, remuneration, facilities, and other service conditions of the Dean shall be as prescribed. 25. Other Office-Bearers: (1) The University may have Campus Chiefs and other office-bearers as prescribed. (2) The appointment, functions, duties, and powers, remuneration, facilities, and service conditions of office-bearers pursuant to Sub-section (1) shall be as prescribed. 26. Provisions Relating to Teachers and Employees: (1) The University shall have teachers and employees as prescribed. (2) There shall be a Recruitment Committee as prescribed to make recommendations for the appointment and promotion of teachers and employees. (3) The appointment, functions, duties, and powers, remuneration, facilities, and service conditions of teachers and employees pursuant to Sub-section (1) shall be as prescribed. 27. Vacation of Office: The office of an office-bearer of the University shall be deemed vacant in the following circumstances:- (a) Upon his/her death, (b) Upon his/her submission of resignation to the appointing authority, (c) Upon his/her being convicted by a court on a criminal charge involving moral turpitude, (d) Upon his/her being proven mentally unsound, or (e) Upon his/her removal from office under this Act. 28.

Removal from Office: (1) If one-fourth of the members for the time being holding office in the Senate submit a written application to the Chancellor stating that the Vice-Chancellor, Registrar, or Dean has failed to fulfill the responsibilities commensurate with his/her office or has not behaved in a manner befitting the office, the Chancellor shall form a three-member investigation committee comprising a member of the University Grants Commission and the Secretary of the Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. Ministry of Education, Science and Technology, under the chairpersonship of any member of the Senate. (2) The investigation committee formed pursuant to Sub-section (1) shall make necessary investigation in that regard and submit its report to the Chancellor within thirty days. (3) Upon receipt of the report pursuant to Sub-section (2), the Chancellor shall present that report to the Senate. (4) Upon discussion of the report submitted pursuant to Sub-section (2), if more than fifty percent of the members for the time being holding office in the Senate, among the members present at the meeting of the Senate, decide to remove him/her, the Chancellor shall remove the Vice-Chancellor, Registrar, or Dean from office. Provided

that he/she shall not be deprived of an opportunity to submit a defense before such removal. (5) If an investigation has commenced against any office-bearer under this Section, he/she shall not be allowed to perform the functions of the office he/she holds until a final decision is made. (6) The procedure to be adopted while investigating or removing other office-bearers of the University, other than the Vice-Chancellor, Registrar, or Dean, on charges pursuant to Sub-section (1) shall be as prescribed. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. (7) For the purpose of performing routine functions to be carried out by an office-bearer pursuant to Sub-section (6), the Chancellor may assign responsibility to any office-bearer of the University. Chapter-9 Provisions Relating to the Fund and Audit of the University 29.

Fund of the University: (1) The University shall have its own separate Fund, and the following amounts shall be deposited in that Fund:- (a) Amount received from the Government of Nepal as assistance or grant, (b) Amount received from any person or institution as donation, endowment, and financial assistance, (c) Amount received as loan or grant from international organizations, foreign governments, bodies, financial institutions, or persons, (d) Amount received from student fees, (e) Amount received from affiliation fees, (f) Amount received from other sources. (2) While receiving any amount pursuant to Clause (c) of Sub-section (1), the University shall obtain prior approval from the Government of Nepal. (3) The amount of the University's Fund shall be deposited by opening an account in a bank designated by the Executive Council. (4) All expenses of the University shall be borne out of the Fund pursuant to Sub-section (1). (5) The operation of the University's Fund and accounts shall be as prescribed. 30. Accounts and Audit: (1) The accounts of income and expenditure of the University shall be maintained in accordance with the prevailing law. (2) Internal audit of the University shall be conducted by a recognized auditor appointed by the Senate. (3) Final audit of the University shall be conducted by the Auditor General. Chapter-10 Miscellaneous 31. Certificate and Degree Amended by the Some Nepal Acts Amendment Act, 2062. and Granting Recognition: (1) The University may award certificates as prescribed to students, trainees, or researchers who have obtained higher education in prescribed subjects, and may confer honorary degrees to persons who have performed commendable work in the research and academic field. Amended by the Some Nepal Acts Amendment Act, 2062. (2) The University may recognize academic degrees of other universities or educational institutions. 32. Eligibility for Admission to the University: The eligibility required for admission to the University shall be as prescribed. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2073. 32A. Free Higher Education and Scholarship: (1) Higher education shall be free for Dalit, marginalized, persons with disabilities, and economically disadvantaged students who fulfill the criteria prescribed by the University and are admitted to the University or its constituent and community educational institutions. (2) For the purpose of Sub-section (1), other provisions relating to the basis, criteria, and classification shall be as prescribed by the Government of Nepal by publishing a notice in the Nepal Gazette. (3) Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2073.

The facility pursuant to Sub-section (1) may be availed by a student only once at each level.

(4) Notwithstanding anything contained in the prevailing law, seats as prescribed shall be reserved for Dalit students for admission to technical and vocational higher education.

(5) The University shall make provision for higher education for the sons and daughters of martyrs, disappeared persons, and persons with disabilities as provided in the prevailing law.

(6) A student who has studied in a community school from Grade Six to Grade Ten shall receive scholarship in higher education as per the prevailing law. 33. Reservation for Student Admission: The University may make provision for reservation as prescribed for admission to the University for backward and disadvantaged

women, persons with disabilities, indigenous nationalities, Madhesi, or Dalit from remote and other areas. 34. Obligation to Act in Accordance with National Education Policy: It shall be the duty of the University to act in accordance with the national education policy of the Government of Nepal. 35. Submission of Report: (1) The University shall submit a report of its main activities during the year to the Government of Nepal.

(2) The report pursuant to Sub-section (1) shall also include details of the amount received and expenses incurred by the University during the year. 36. Power to Give Directives: The Government of Nepal may give necessary directives to the University, and it shall be the duty of the University to comply with such directives.

37. Power to Delegate Powers: (1) The Senate may, as required, delegate some of the powers conferred to it by this Act or the rules made under this Act to the Academic Council or the Executive Council.

(2) The Academic Council or the Executive Council may, as required, delegate some of the powers conferred to it by this Act or the rules made under this Act to any body.

(3) Any office-bearer of the University may, as required, delegate some of the powers conferred to him/her by this Act or the rules made under this Act to any office-bearer subordinate to him/her. 38. Liaison with the Government of Nepal: The University shall liaise with the Government of Nepal through the Amended by the Ministry of Education, Science and Technology. Ministry of Education, Science and Technology. 39. Proceedings Not to be Invalid: No proceedings of the University shall be invalid merely by reason of the vacancy in the position of any office-bearer or member, or any defect in the appointment or nomination of any office-bearer or member. 40.

Protection of Acts Done in Good Faith: No suit or other proceeding shall lie against the University or any office-bearer of the University in respect of any act done or intended to be done in good faith pursuant to this Act or the rules made under this Act. 41. Power to Dissolve: (1) If it appears that the University cannot be operated for any reason, the Government of Nepal may dissolve the University on the recommendation of the Senate. (2) Before dissolving pursuant to Sub-section (1), if there is any claim of any person, a public notice shall be issued giving a period of at least thirty-five days to submit such claim to the Amended by the Ministry of Education, Science and Technology. Ministry of Education, Science and Technology. (3) If the University is dissolved pursuant to Sub-section (1), the Government of Nepal shall pay the liability only up to the amount realized from the sale of the property of that University. 42. Power to Make Rules: The University may, subject to this Act, make necessary rules for the implementation of the objectives of this Act. 43. Saving: Acts and proceedings done or performed pursuant to the Lumbini Buddhist University Ordinance, 2062 (2005), issued on Kartik 24, 2062 (November 9, 2005), shall be deemed to have been done or performed under this Act.